DOCUMENT 10 — FINAL DECISIONS AND REMAINING TECHNICAL QUESTIONS (REVISION 5)

No policy questions remain open. All sponsor decisions are settled (list below). The items in Part 2 are technical questions for outside counsel, LSC, fiscal staff, and implementing agencies. None reopens policy.

Part 1. Settled policy

Topic	Decision
Equal status	Automatic on established paternity or parentage; status is not a schedule; no pre-order no-removal rule
Presumption	50/50 (45%+) at first allocation; enumerated rebuttal grounds; 90-night floor
Child's preference	Age 12; followed unless endangering, impracticable, or not the child's own; written findings
Existing orders	Restoration without changed circumstances; first schedule motion at 50/50; no self-help
Court orders control	Only a court or a particular agreed deviation changes an order
Service costs	Voluntary; requesting parent may be charged; otherwise free to the non-agreeing parent, **including GALs**
Protection orders	Full-hearing orders switch off the presumption; ex parte and consent orders do not by themselves
Allegations	90-day hearing; 36 months + one 45-day extension; clear and convincing for knowingly false
Enforcement	CSEA designated FSEA; optional; make-up time and a recorded violation; **no money payments**; referral thresholds
Support	Two components; **no percentage**; where-not-what accounting; prospective credit; no self-help
Linkage	Support and parenting enforcement stay separate
Criminal	2919.23(A)–(D) unchanged; clarifications; 60 + 30 day prosecutor notice
Structure	No pilot; no companion bill; one-year delayed start for the FSEA and components

Part 2. Technical questions for review

For outside family-law counsel 1. **Superintendence rules vs. 3109.053.** Confirm that a statute allocating GAL and parenting coordinator costs controls over Sup.R. 8.02(A)(5)–(6) and local fee rules (art. IV, § 5(A)), and whether a companion request to the Supreme Court to amend

Sup.R. 8.02 is advisable. 2. **"A parent who requests a service may be charged."** Confirm this reads correctly with 3109.04(B)(2)(a), under which a GAL is mandatory on a parent's motion. 3. **Restoration motions in juvenile court.** Confirm that 3109.04(E)(1)(c) reaches custody orders entered under 2151.23(A)(2) through 3109.04's existing application there.

For LSC (drafting form) 4. Lettering: the draft letters the two existing unlettered paragraphs of 3109.043 as (A) and (B) and adds (C) and (D); it places 3109.401(A)(5) after (A)(4)(e) and 3109.04(E)(1)(c) after (E)(1)(b). Confirm no other section cites the affected text by paragraph. 5. Whether LSC prefers separate conforming amendments to 3109.04(C), 3109.052, 3109.055, and 3109.12 over the cross-reference and "notwithstanding" approach used here. 6. Final wording of the title (LSC drafts titles; Ohio Const. art. II, § 15(D)). 7. Conformity with S.B. 174 if it is enacted before introduction (Section 7). **S.B. 174 as introduced also enacts a section 3109.044** (and others in the 3109.04x range), so this bill's new section numbers would need to change.

For ODJFS / child support program staff 8. The support-system change needed to record parental support and accountable child support separately, and to apply a twelve-month prospective credit. 9. Whether treating the credit as a 3119.22 deviation needs a state-plan or OCSE notice (45 CFR 302.56(g)). 10. Confirmation that 3125.10's non-IV-D cost-allocation sentence matches the agency's existing cost allocation plan.

For LSC fiscal staff 11. Statewide GAL and parenting-coordinator fee volume, and the share now paid by parents. 12. Projected FSEA complaint and accounting volume (Michigan Friend of the Court data is the nearest comparison). 13. Ohio's current 42 U.S.C. 669b allotment and administering office.

Part 3. Bill-form structure compared with official Ohio bills

Document 5 was checked against three official Ohio bills that amend Chapter 3109, retrieved from the General Assembly's site: **H.B. 508 (134th G.A.) As Introduced**, **H.B. 14 (135th G.A.) As Introduced**, and **S.B. 174 (136th G.A.) As Introduced** (copies in `sources/`). S.B. 174 as passed by the Senate was used for the form of uncodified sections.

Reproduced in the draft: - "A BILL," followed by a long title in the form "To amend sections … and to enact sections … of the Revised Code to …." - The enacting clause, "BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF OHIO:" - Section 1: "That sections … be amended and sections … of the Revised Code be enacted to read as follows:" - The **full current text** of every amended section, in numerical order, each beginning with a bold "Sec. ___." Added text is underlined and deleted text is struck through. Enacted sections are underlined in full. - No catchlines or division headings. Divisions run (A), (1), (a), (i). - Section 2: "That existing sections … of the Revised Code are hereby repealed." - Uncodified Sections 3–7, numbered and without headings, covering transition, the delayed effective date, totals, forms, funding, data, and S.B. 174 conformity. - Courier type, double spacing, and line numbers in the Word and PDF versions.

Left for LSC; not reproduced, so the draft does not look introduced: 1. Bill number, General Assembly and session block, sponsor and cosponsor lines, and the "As Introduced" running

header. The draft carries a “Pre-introduction draft — not introduced” banner and footer instead. 2. The LSC document or request number. 3. Official line numbering. The draft’s Word line numbers are for review only and will change. 4. Composite-section statements under R.C. 1.52(B). These are needed if any amended section is changed by another act in the same General Assembly. The current text was retrieved on 4 and 5 October 2026; LSC confirms versions at drafting. 5. Final section numbering of the new sections, which depends on S.B. 174 (item 7 above). 6. Final title wording (item 6 above). 7. Appropriation items. Section 6(C) names funding sources only. Line-item appropriations need fiscal figures and are usually made in an appropriation act. 8. Any further conforming amendments LSC’s cross-reference search identifies in other sections. 9. A short-title section. The working title appears only on the draft banner, because the title is not final; LSC can add “This act shall be known as …” once it is.

Effective date. No general effective-date section is needed. An Ohio act takes effect on the ninety-first day after it is filed with the Secretary of State (Ohio Const. art. II, § 1c). Section 4 sets the one-year delay for the FSEA and support provisions.